



LAWYERS CODE FOR THE STATE OF SAN ANDREAS

Governed and upheld by the Department of Justice

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Officiated and upheld by:

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Article 1. General provisions

- 1.1 A Lawyer is a person who represents the interests of the accused party in the face of the law and holds a state license legally obtained according to existing rules and regulations. A lawyer can practice as : a State Attorney (Government), a District Attorney (Legal Organization), in an existing law office, or be independent in private practice.
- 1.2 A Lawyer operates on the basis of legality, independence, autonomy, corporatism, as well as the principle of equality of lawyers, knowledge, and understanding of the existing Constitution, codes, and laws of the State of San Andreas.
- 1.3 A Lawyer has access to classified information about the personal data of investigation participants and certain data of the preliminary investigation, therefore is criminally responsible for disclosing any of this information.
- 1.4 A Lawyer has the right to oblige the prosecution to provide evidence / evidence of guilt and the prosecution is obliged to provide them.
Exception: If the matter is heard in a Court of Law, it will be the responsibility of the prosecution to prove guilt to the court, not the defense attorney
- 1.5 A Lawyer has the right to use the attorney-client privilege at all times, as well as the joint defense privilege.
- 1.6 A Lawyer is not considered as an entrepreneur.
- 1.7 Essential legal services include the control over the legal aspects of the arrest process, respect for human rights, presence of evidence, impartial judgment in sentencing and consideration of all extenuating circumstances.
- 1.8 Additional legal services include consulting, drafting claims, appeals and petitions, filing documents with the prosecutor's office and on the official portal of the State, acting as a proxy for posting bail.

- 1.9** Organization lawyers (District Attorneys) only act on behalf of that organization and only provide assistance within that org for only organization related cases. Only the government can provide lawyers with the exception of hiring a private lawyer . ‘Provided by the state’
Exception: Life Invader and EMS, as Life Invader is privately owned
- 1.10** Only a licensed Lawyer may represent a client in the court of law. However if you want to represent yourself in the court of law you may do so.
- 1.11** Any attorney, private, state or organization, has to show the lawyers license to all parties involved.
- 1.12** Entities affiliated with the Department of Justice (including but not limited to State Attorneys, Private Attorneys, District Attorneys, and Law Students), regardless of their employing organization or firm, shall have primary duty to the State of San Andreas.
- 1.12.1** Such individuals are required to act in the best interest of the law and in accordance with all procedures, regulations, and directives established by the heads of the Department of Justice and duties assigned and/or defined by law. Any private or organizational contractual obligations shall not supersede or conflict with these duties.
- 1.12.2** The host organization shall bear responsibility for the financial remuneration of such entities for all services rendered and work performed.
- 1.12.3** Such individuals are required, prior to leaving any organization or firm, inform the Attorney General and/or Supreme Court Justice. Failure to do so may result in disciplinary action as deemed appropriate by the Attorney General and/or Supreme Court Justice.

Article 2. State Attorneys

- 2.1 A State Attorney must be employed by the Government.
- 2.2 A State Attorney has a fixed salary provided by the State.
- 2.3 A State Attorney must respond to the Departments radio wave, therefore is responsible for proper usage of the Departments radio wave. (EXCEPTION: It is **NOT** required to answer the state wave for matters that are a conflict of interest to the attorney, or would put the Attorney in unreasonable harm of life or limb)
- 2.4 The Attorney General and Supreme Court Justice are responsible for holding the State Bar Exams, the issuance of the State lawyers licenses and the activities of State Attorneys.
- 2.5 The Attorney General can act as a lawyer in any capacity that a State Attorney can, if they have a license and if this does not enter in conflict with their main professional activities.
- 2.6 A State Attorney has the right to pass freely on the territory of the LSPD / SAHP in performance of their official duties. (Ex. Department Chat was issued requesting a state lawyer).
- 2.7 A State Attorney has the right to enter the territory of the DOC. They may offer prisoners representation and additional services.
- 2.8 A State Attorney has the right to enter the territory of FIB / NG only upon a call to the Department's radio wave and in the presence of employees. In the case of refusal of lawyers' services by a detainee or after successful provision of services, the lawyer must immediately leave the territory of the FIB / NG.
- 2.9 A State Attorney has the right to use non-armored vehicles of the Government to perform their official duties.
- 2.10 A State Attorney, performing their official duties, provides essential public defender services to all citizens free of charge. Calls for an attorney over the department radio shall constitute essential public defender services.

- 2.11** A State Attorney has the right to perform the duties of a state prosecutor. Investigating crimes, writing, and executing warrants with the assistance of law enforcement.
- 2.12** You must sustain the label of the Department of Justice in order to be a lawyer in the Organization. However, if there are no lawyers available or in the city a member of the Government may take the case provided they have a valid lawyers license and are registered as a state attorney via the Department of Justice.

Article 3. Private Lawyer

- 3.1** A Private Lawyer is a citizen of the State of San Andreas without any criminal records, who has successfully passed the State Bar Exam and has paid in full the state fee for obtaining a private lawyer license.
- 3.2** A Private Lawyer, performing their official duties, undertakes to comply with all applicable laws and procedures.
- 3.3** A Private Lawyer is obliged to provide their services exclusively on the terms of an existing contract, concluded with the client beforehand and prior to the provision of the identified services.
 - 3.3.1** The contract may be concluded on the arrival of the lawyer to begin their services in the case of a new client of whom the lawyer has agreed to arrive to represent during a telephone call.
- 3.4** A Private Lawyer has the right to enter the territory of the DOC / LSPD / SAHP / FIB / NG only upon a call of their existing client and only accompanied by the employees. In case of refusal of lawyers' services by a detainee or after successful provision of services, the lawyer must immediately leave the territory of the DOC / LSPD / SAHP / FIB / NG.
- 3.5** It is strictly forbidden for a Private Lawyer to interfere with the work of law enforcement agencies.
- 3.6** A Private Lawyer has the right to set the prices for their services at their own discretion.
- 3.7** A Private Lawyer is solely responsible for all of their professional activities, Investigative work as well as for compliance with existing laws and regulations. However, for an administrative service, a fee of \$75,000 may be charged by the Department of Justice.
- 3.8** If you want to act as a private lawyer you must contact the Attorney General or Supreme Court Justice to seek approval before beginning to take payments from private clients/entities. You may either remain in the Government or leave but must not join a Law Enforcement Agency/Organization.

3.9 To become a Private Attorney, you must meet the following conditions:

- Represent in no less than 15 (fifteen) defence cases (DOC/ Bench Trials) where the outcome is detailed as favourable to the defense.
- Be a member of the Department of Justice for no less than 14 consecutive days.
- Have at least 3 subpoena requests approved and issued by a Judge.
- Reach the rank of State Attorney in the Department of Justice.
- Represent at least 3 clients in court.

3.10 Private attorneys may hand in any documents for the Department of Justice to any high commanding member of the Government and may also leave documents for the courts and Attorney General on the desk in the Department of Justice office.

3.11 The Government has the right to audit and inspect Private Lawyers, Org Lawyers and Private Law Firms to ensure that they are operating to The Department of Justice's Standards.

3.12 Private attorneys may represent civilians and be called upon by State Organizations to represent their employees and their organization and could also be called upon to act as a public defender funded by the Department of Justice if required.

3.13 Upon renewal of a Private Attorney's license the Attorney General or Supreme Court Justice may request evidence of work completed by the Attorney wishing to renew their license.

Note: The standards required of work completed are set out by the Department of Justice and the Attorney General and Supreme Court Justice has the right to refuse renewal based on the evidence of said work completed.

3.14 All Private Attorneys are required to register their law firm with the Department of Justice and notify the Department of Justice of any name changes the law firm undergoes as well as adding other Private Attorneys their law firm.

3.14.1 All Private Attorneys are required to employed by a law firm.

Note: Owners/CEOs of law firms are still considered employees of said firm.

3.14.2 The Department of Justice may take administration fees for the following:

- Registering a law firm: \$250,000
- Assigning a Private Attorney to a law firm: \$50,000
- Changing the name of the registered firm: \$100,000

Article 4. Obtaining a lawyer license

- 4.1** All applications for a lawyers license are filled out through the Government's official email, or through Inquiry with the Attorney General's office.
- 4.2** The issuance of any lawyer's licenses is carried out by authorized members of the Government in the manner prescribed by the existing laws and regulations.
- 4.3** To obtain a lawyers license, the applicant must : have no criminal record; have lived in the state for more than 10 years; know all state laws and regulations; pass the State Bar Exam; fully paid all State license fees. You must also have clear communication skills, If the AG or SCJ believe that any of the aforementioned requirements are not met they have the right to decline the applicant a license.
- 4.4** The state will offer scholarships of \$100,000 for the private education of a law student by a senior member or former senior member of the department of justice. Scholarships must be submitted by a senior member of any state organization on behalf of the student and are payable to the educator.
- 4.5** Pricing for the Lawyers license are as follows:
- a) After passing the bar exam: \$15,000
 - b) Renewal of a license as a State Attorney: \$10,000
 - c) Renewal of a license as a District Attorney: \$15,000
 - d) Renewal of a license as a Private Attorney: \$125,000
- Note: These prices are subject to the discretion of the Attorney General or Supreme Court Justice.***

Article 5. Contract

- 5.1** Contract for the provision of lawyer services (hereinafter referred to as the contract) is a legally binding document between a lawyer and a client, signed freely and consensually, that regulates the list of providing legal services, delegating the right to represent the client's interests and meeting the requirements and approval of the existing laws.
- 5.2** A Private Lawyer must have an existing contract or conclude a new contract with any citizen of the state of San Andreas before providing any legal services.
- 5.3** A State Attorney must conclude a contract with a citizen of the state of San Andreas before providing any legal services.
- 5.4** The contract must be completed by the two parties in their direct presence. Remote conclusion of the contract is not allowed. Remote contracts are not legally binding.
- 5.5** The contract must be done and signed only in written form to be valid, as well as must comply with all laws and regulations of the State.
- 5.6** The contract is not a subject of Attorney Secrecy and must be provided to the governments' email server and on request to a representative of the Attorney General's office.
- 5.7** The contract comes into force from the moment of signing until the moment of termination, or the fulfillment of the obligations of the parties in full.

Article 6. DOC Defense Procedure

- 6.1 DOC Defense is the procedure of defending a Client at DOC while bench trials are not in session. The lawyer must have a contract with the Client prior to starting the DOC Defense procedure.
- 6.2 When arriving at DOC, the lawyer should identify themselves to the arresting officer(s), and ask that anyone whose body-worn camera will be reviewed is present and that the entire situation is able to be viewed; if not the lawyer should ask for the other officer(s) to be called to the DOC. The Lawyer shall also identify themselves to the Client.
- 6.3 The Lawyer will have time to speak to the Client in private without the officer's presence.
- 6.4 Once the lawyer is ready to review the body camera, they shall ask the officer(s) to show their bodycam on their PDA. The officers have 10 minutes from the time asked to provide the footage.
Note: The 10 minutes starts from when the lawyer is ready to review the body-worn camera, and after talking to the Client if the Client/Lawyer has requested to talk in private. The time it takes for another officer to arrive if needed is counted in this time.
- 6.5 The Lawyer will review the officer(s) body-worn camera footage to ensure that the Procedure for Detention and Arrests act and Code of Procedures are followed. The lawyer has up to 15 minutes to view the footage with the officer and should make notes if any violations are presented. They may interrupt the bodycam footage to explain to the officer if anything does require attention, however the lawyer should try to keep it brief. If this process exceeds 15 minutes, the review should be stopped and the bodycam may be requested via a subpoena where the lawyer sees fit. The allotted time begins as soon as the officer presents the footage once validity is confirmed.
- 6.6 After the bodycam has been reviewed, the lawyer will make a suggestion to the officer on whether to arrest or not based on the footage provided. This should be un-bias and reflect the best interests of both their client and the officer. There may also be an agreement of compromise for dropped or reduced fines and prison time (in accordance with Penal Code 1.6.1) based on any violations of procedures or lack of evidence to support alleged crimes.
- 6.7 If the body-worn camera is not provided within the 10 minutes allotted or anything within *Article 6 (Grounds for release of a suspect) in the Code of Procedures* is found to be true, the Lawyer should request the immediate release of their Client. It shall be mentioned to the Officer(s) by the Lawyer that they still may pursue an Arrest Warrant if they still believe the Client to be guilty if either of the statements before are found to be true.

Article 7. Bailing out procedure

- 7.1 Bailing out is a procedure of releasing a convict from imprisonment by payment of a fixed amount of money in direct proportion to the remaining time of detention.
- 7.2 Bailing out is allowed only for 60 months or less of an inmate's remaining time in detention.
Exception: when a rehabilitative class has been successfully completed by the inmate as described in the program for rehabilitative procedures.
- 7.3 A Lawyer must have an existing Contract with a Client in order to start the Bailing Out procedure.
- 7.4 A Lawyer must receive a verbal confirmation of the convict's appropriate behavior from a DOC officer prior to Bailing Out.
- 7.5 A Lawyer must make a background check of the prisoner's record to verify their prior convictions via the PDA or if they are a private attorney, a member of a State Organisation should be contacted to perform a background check on their behalf.
- a) If the convict is a first time offender, bail is permitted for 60 months or less remaining on their current sentence
 - b) If the convict has two (2) or three (3) prison terms, bail is permitted for 45 months or less remaining on their current sentence.
 - c) If the convict has four (4) to six (6) prison terms, bail is permitted for 30 months or less remaining on their sentence.
 - d) if the convict has seven (7) to ten (10) prison terms, bail is permitted for 15 months or less remaining on their sentence.
 - e) Bail is not permitted for any citizen with more than ten (10) prison terms.
- 7.6 A Lawyer must provide visual proof of any bail procedures that they perform to the government email server and keep bodycam footage for 48 hours and provide them to the Attorney General or Supreme Court Justice on request.

Article 8. License revocation

8.1 The Department of Justice can terminate a lawyer's license in the case of:

- a) Violation of any laws and regulations by the government;
- b) Disclosing privileged client or case information or classified information;
- c) Changing the type of Lawyers license;
- d) Changing any personal data;
- e) Leaving the government without alerting the Attorney General or Supreme Court Justice;
- f) Resignation from the government in any way;
- g) Change of legislation;
- h) Executive order signed by the governor.

Article 9. Attorney-client privilege

9.1 Attorney-client privilege is any information related to the provision of legal assistance by a lawyer to their client.

9.2 A lawyer cannot be summoned and questioned as a witness about the circumstances that became known to him by providing legal assistance to a client.

9.3 A lawyer has the right to communicate with their client in private, regardless of location, while performing their duties.

9.4 DOC protocol: all interactions between a Lawyer and a client take place in the special Meeting room, in full privacy.

Note: the client must be accompanied from the cell to the Meeting room and back by a DOC officer.

9.5 A lawyer that has gained information about possible future terrorist activities has the obligation to report this to the Governor's Office or the Attorney General's Office.

Note: Report may be anonymized and is classed as state-secret.

Note 2: Failure to report may be classed as "Refusal of Duty to Act".

Article 10. District Attorney

- 10.1** A District Attorney is an employee of the legal organization.
- 10.2** A District Attorney has a fixed salary provided by the organization.
- 10.3** A District Attorney has the right to use non-armored vehicles of the org to perform their official duties.
- 10.4** Each state organization should make an effort to retain a state legal organization lawyer to assist and supervise their Internal Affairs, compliance with the law, policies and procedures, HR actions, and related tasks.
- 10.5** The District Attorney shall work to ensure that charges are applied properly to suspects and act as the prosecutor and defense for their Organization and its employees in any legal proceedings.
- 10.6** Criminal charges applied by a state organization are made in the name of their district attorneys and therefore may only represent members of their own organization.
- 10.7** To become a District Attorney, you must first qualify to leave the Government to become one. These conditions are no less than 5 (five) defense cases, be active in the Department of Justice for 7 (seven) days, have 1 (one) approved subpoena or arrest warrant by the court of San Andreas and a letter of recommendation from the Organization Leader.
Note: Exceptions may be made by the Attorney General.
- 10.8** There may only be no more than 3 (three) District Attorneys per State Organization.
- 10.9** The Federal Investigation Bureau may refer to their District Attorneys as “Federal Attorneys”.

Signed into law by the following state leaders:

Governor of San Andreas

Matthew Blackheart

A stylized, handwritten signature in black ink, appearing to read 'Matthew Blackheart', written over a horizontal line.

General of the National Guard

Bob Captain

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Chief of Police

Owen Nuts

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Sheriff of Blaine County

Martin Cartel

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Director of the Federal Investigation Bureau

Ash Blanco

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Chief of Emergency Medical Services

Nia Luca

A handwritten signature in black ink, reading 'Nia Luca', written over a horizontal line.

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